

Draft of a memorandum of understanding to be given by the bidder for electrical, firefighting and prefabrication construction manufacturer accompanied by board of resolution signed of board of director.

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (**MOU** in short) is being made and entered into on this _____ Day of _____ 2022 by between:

M/s. _____ (hereinafter referred to as '**JS**') and having their Registered Office, _____, represented by its Partner is **Mr/Ms. _____** of the **FIRST PART**.

AND

M/s. _____. (Hereinafter referred to as '**_____**') and having _____ their _____ registered _____ office _____ at _____, representative by its Authority Person **Mr. _____** (**_____**) of the **SECOND PART**.

WHEREAS

The Parties have agreed and decided to quote for BMC tender of Dy. HE(Maint.). **"Appointment of Turnkey Contractor for construction of 2068 nos of 300 sq. ft. tenements on open plot known as "600 Tenements" Plot Bearing CTS No. 1 (pt) and CTS No. 3 (pt) at Deonar, M/E Ward."** (Hereinafter referred to as the "Project"). The Client is Brihanmumbai Municipal Corporation (herein after referred to as "**Employer**").

NOW THEREFORE both the parties have agreed to record the understanding reached by & between them in writing and as under;

1. **M/s. _____** shall purchase quote, execute and perform all the works except for **"work of electrical and mechanical work"** and items required to be executed under the project and all the resources required for the same viz Men, Material, Machinery, Money, etc. shall be arranged by **M/s. _____**.
2. All the permissions, deposits, fees, NOC's , local issues like shifting of structure, utilities, trees, local problems, various testing and approvals, etc. shall be taken care of by **M/s. _____** including all the costs and expenses involved

thereof. All the Statutory charges applicable to the project, from time to time and at the prevailing rates, shall be borne by M/s_____.

3. Tender fees, EMD, Security deposit & any other charges shall be paid by M/s._____.
4. 'M/s. _____' shall be solely responsible to execute the Sub-Contract scope of work i.e. **“work of electrical and firefighting and prefabrication construction manufacture work”**.
5. It is clearly and expressly understood and agreed by both the parties that this MOU, between M/s. _____ and _____, is only for the above stated project and shall immediately cease to exist upon completion of the works and/ or the result of the tender.
6. This MOU is entered into and agreed by both the parties as finally integrated expression of all intents of both the parties and gain precedence over any and all earlier understanding, correspondence and promises exchanged at different times and from time to time preceding this MOU.

IN WITNESS hereof the parties have signed this MOU first before stated.

Signed, Sealed and delivered)
By the within named party of the 1st Part)

M/s. _____)
(Office at _____)
_____)
_____)
_____)

_____)
Partner

In presence of)

Signed, Sealed and delivered)

By the within named party of the 2nd Part)

M/s. _____)

(Office at _____,)

_____) M/s. _____

Through its Person Mr. _____)

Authorised Signatory

In presence of)